

Information for Law Enforcement

The information and guidelines provided below are intended for United States and international law enforcement and government agencies who are seeking to request Niantic player records (i.e., user data) from Niantic, Inc. ("Niantic"). Please be aware that this page may be updated at any time and does not create any obligations concerning how Niantic will respond in a particular case. Notwithstanding the information provided here, Niantic does not waive, and expressly reserves, all available rights and objections.

U.S. Law Enforcement Requests for Records

We disclose account records in accordance with our [Terms of Service](#), [Privacy Policy](#), and applicable law, including the Stored Communications Act ("SCA") 18 U.S.C. § 2701, et seq. and analogous state laws. You can find examples of information we store in our [Privacy Policy](#).

Non-U.S. Law Enforcement Requests for Records

If you are outside the United States, you generally cannot compel Niantic to provide any player information unless you obtain a valid U.S. court order (via the mutual legal assistance treaties, letter rogatory, or other process involving international cooperation, such as pursuant to 42 U.S.C. § 1782). Non-U.S. law enforcement requests are to be submitted to lawenforcement@nianticlabs.com. As a courtesy to non-U.S. law enforcement, Niantic will review and respond to written preservation requests while the MLAT or letters rogatory process is undertaken.

Player Records Request Requirements

- Submission.** All requests for player records should be dated and submitted via email to lawenforcement@nianticlabs.com. This is the fastest and most efficient means of contacting Niantic. Requests and legal process can also be personally served on Niantic through its agent, Incorporating Services, Ltd. ("Incserv") in California at 7801 Folsom Boulevard, Suite 202, Sacramento, CA, 95826 and in Delaware at 3500 S Dupont Hwy, Dover DE 19901.
 - Our agreement to accept legal process by these methods is for convenience purposes only and does not waive any available objections, including lack of jurisdiction or proper service.
- All requests for records must include:
 - Requestor contact information, including: name, title, agency, government-issued email address, direct contact phone number (including the extension if applicable), mailing address, and requested response date (please allow at least 10 days for processing).
- Addressing.** Each request must identify Niantic, Inc., Pier One, Bay 3, San Francisco, CA 94111 as the entity to which the legal process is directed. Submitting legal process by mail will result in slower processing times.
- Proper Identifiers.** All requests for player data must specifically identify a player account. In order to accurately search, Niantic requires an identifier in the form of an email address associated with a player account, or a username/Trainer Nickname.
- Data Requested.** All requests must state the records requested with specificity. This includes any particular categories of data sought (including if you are seeking records that were previously preserved pursuant to a preservation request) and date limitations for any available requested data.
- Relevant Legal Process.** Niantic reviews each request for player data and the associated legal process to ensure facial validity and legal sufficiency under applicable laws and regulations. Niantic will only provide available player data when presented with the following required legal process (or in response to a valid Emergency Data Disclosure Request, as described below):
 - A valid trial, grand jury, or administrative subpoena is required to compel the disclosure of basic subscriber information, defined in 18 U.S.C. § 2703(c)(2). Basic subscriber information ("BSI") may include a user's name, email address, length of service with Niantic products, telephone records and IP addresses, and payment information, if available.
 - A valid court order issued under 18 U.S.C. § 2703(d) is required to compel the disclosure of other records pertaining to usage of an account, not including the contents of player communications.
 - A valid search warrant issued under the procedures described in the Federal Rules of Criminal Procedure or equivalent state warrant procedure is required to compel the disclosure of player communications, or a player's location information, if available.
- Context and Offense(s) Under Investigation.** So that Niantic can ensure validity and sufficiency, the request should indicate the nature of the crime(s) being investigated, including citations to the underlying legal authority, the circumstances of the offense, and how it is connected to Niantic.
- Player Notification.** For purposes of transparency and due process, Niantic's policy is to notify players (e.g., prior to disclosure of account information) of valid requests for their Niantic account information, including a copy of the request, unless we are prohibited from doing so (e.g., by an order under 18 U.S.C. § 2705(b) or equivalent non-disclosure authority). We ask that any non-disclosure provisions include a specified duration (e.g., 90 days) during which Niantic is prohibited from notifying the player. Exceptions to our player notice policy may also include, at Niantic's sole discretion, exigent or counterproductive circumstances, such as child exploitation, terrorism or emergencies regarding imminent threat to life.

Data Retention Information

Niantic retains data in accordance with our [Privacy Policy](#). In responding to requests for player data, Niantic is only able to search for and disclose data that is reasonably accessible.

Player Records Preservation Requirements

In accordance with applicable law, 18 U.S.C. § 2703(f), Niantic will temporarily preserve player data pending service or issuance of legal process for disclosure of that information. Preservation requests must meet all of the following requirements:

- Sent to lawenforcement@nianticlabs.com with the subject line "Preservation Request | [User ID - Docket/Case No]"
- Sent from a government-issued email address;
- Submitted on law enforcement letterhead and signed by the requesting officer or agent;
- Identifies Niantic player(s) and the particular player record(s) that are to be preserved;
- Identifies the time period for which the records are to be preserved (i.e., 90 days); and
- Include assurances that the requesting agency or individual is taking steps to obtain appropriate legal process for access to the data that we are being asked to retain.

Unless Niantic receives an extension request, the preservation will be released at the expiration of the initial preservation term, which is 90 days as provided by law, and the preserved records will be subject to Niantic's normal retention or destruction schedules. Niantic strongly recommends that law enforcement submit an extension request at least seven (7) days before the expiration of the prior preservation term. When you are submitting your extension request, please clearly identify the request as a preservation extension in the subject line of your correspondence (e.g., "Preservation Extension | [User ID - Docket/Case No.]").

In the ordinary course, players will not be notified of a preservation request of their account information.

Emergency Data Disclosure Requests

In emergency circumstances, in which there is a risk of death, serious physical injury to a person requiring the disclosure of player data without delay, or situations involving child safety, law enforcement may submit a request by filling out [this form](#) and providing it via email to lawenforcement@nianticlabs.com with "Emergency Data Disclosure Request" included in the subject line. Niantic will endeavor to review and process these requests on an expedited basis. Any disclosures in response to emergency disclosure requests will be limited to that information which would help prevent the imminent harm.

All Emergency Requests must include:

- A description of the emergency;
- The identity of the person who is in danger of death or serious physical injury;
- Valid Niantic account identifier(s) in the form of email address(es) or username(s) (in plain text file to ensure accuracy);
- The specific player data requested and an explanation as to how that information is necessary to avert an imminent threat; and
- Your contact information, including name, title, government-issued email address, phone number, and street address.

Niantic evaluates Emergency Data Disclosure Requests on a case-by-case basis and will consider requests in light of applicable laws and our policies, and may request additional information to verify the nature of the request and/or the identity of the person making the request. Under 18 U.S.C. §§ 2702(b)(8) and 2702(c)(4), Niantic is permitted, but not required, to voluntarily disclose information, including contents of communications, location information, and customer records, to a federal, state, or local governmental entity if Niantic believes in good faith that an emergency involving child safety, imminent danger of death or serious physical injury to any person requires such disclosure without delay.

Note that this information is for law enforcement seeking information in an emergency. Any players or non-law enforcement personnel aware of an emergency situation should immediately contact their local law enforcement.

Certificate of Authentication or Expert Testimony

Generally, Niantic will not provide in-person testimony or expert witnesses. The records that Niantic produces are self-authenticating and should not require the testimony of a records custodian to be used in any legal proceeding. Niantic endeavors to provide a standard certificate of business records with its productions, when necessary or upon request.

Cost Reimbursement

Niantic may seek reimbursement for costs in responding to requests for information as provided by law (e.g., 18 U.S.C. § 2706). If we seek reimbursement for the actual costs of preserving and/or producing information, Niantic will provide a good faith estimate of such costs as part of our production or upon law enforcement's request prior to our processing.

These fees apply on a per account basis. We may also charge additional fees for costs incurred in responding to unusual or burdensome requests.

We may waive these fees in matters investigating potential harm to children and emergency requests.

Non-Law Enforcement Requests

The above information is specific to law enforcement and governmental requests for player data. Note that federal law allows private parties to obtain only limited information with a subpoena or court order. Niantic may provide available basic subscriber information where such information is indispensable to the case and not within a party's ability to acquire on their own, after personal service of a valid subpoena and notice to the player. Niantic only accepts valid federal, California, or California-domesticated subpoenas which have been personally served on Niantic's registered agent for service of process, as described above.

Private parties can request their own account information and content by emailing privacy@nianticlabs.com.

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